

26VECV00284 26VECV00284

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 26VECV00284 Hearing Date: August 28, 2026 Dept: T

26VECV00284 NAZARI V LIBERTY CANYON

Plaintiff is seeking substantive, no-objection responses from Defendant PAMELA ROWE to Plaintiff's : 1) Form Interrogatories; 2) Requests For Admission; and 3) Document Production.

On May 14, 2026, Plaintiff SARAH NAZARI served Requests for Admission on PAMELA ROWE and on May 15, 2026, Plaintiff served Form Interrogatories and Request for Production of Documents.

On June 16, 2026, Defendant PAMELA J. ROWE tendered (un-verified) responses, objecting to each and every request, failing to provide a single response to any of the discovery requests nor produce any documents.

Defendant's counsel noted the difficulty in establishing contact with Defendant for a number of months. That communication had since been established with Defendant recently, and counsel advise that further responses would be provided prior to the hearing on the Three Motions. There is no declaration attesting to why defendant could not be reached.

Plaintiff states the following:

Defendant's counsel served responses with [only] boilerplate objections, and since then, has made no effort to justify any of these objections. This is not true. Defense counsel stated they could not reach their client and the objections were served to preserve them.

Plaintiff states that there is no justification for this intentional failure to cooperate. That is incorrect. There is a reason: defense counsel could not reach their client.

Being unable to reach one's client does not justify nor excuse the meritless objections nor counsel's duties and obligations. The court does not find fault with service of objections to preserve them.

Objections are waived. The court does not agree. Objections have not been waived. There is no legal authority to strike objections which were timely served. Objections only do not require a verification.

But an attorney's inability to reach their client is not substantial justification under California discovery law to delay compliance. Plaintiff fails to state how the discovery can be answered and verified if the client cannot be reached. At a

minimum, defense counsel are not at fault.

There is no indication that supplemental responses have been served.

Accordingly, plaintiff is ordered to give verified, substantive responses to this discovery. Objections have not been waived. The RFP response requires Code compliant language and a privilege log, as well as production of documents. Form Int. 17.1 shall be completed in full, including subparts, for each RFA which is not an unequivocal admit.

Responses are due no later than 9/18/2026.

MONETARY SANCTIONS

These were simple motions which could easily be done by paralegal or printing a form motion from counsel's previous motions.

Form Interrogatories

The monetary sanctions requested for the Form Interrogatories motion are excessive. This is a boilerplate motion. Plaintiff asks for \$2,925 for a motion on discovery which was, essentially, not answered, asking for 6 hours of time for something which should not have taken more than 2 hours, including appearance at \$475 an hour. The court orders monetary sanctions against defendant Pamela Rowe pursuant to CCP section 2023.010 for discovery abuse without substantial justification in the amount of \$950 fees plus filing fee of \$75 for a total of \$1,025 payable by defendant to the Client Trust Account of GRAYSTONE LAW GROUP 26565 West Agoura Road #200 Calabasas, California 91302 no later than 9/18/2026. There was no need for a reply.

RFAs

The same applies for the Motion to Compel RFAs. This is a boilerplate motion. Plaintiff seeks 11 hours of time at \$475 an hour. This request borders on the frivolous. There is no explanation how the billing rate was reached. This motion, including hearing, could have been reasonably completed in 2 hours. The separate statement is boilerplate argument, and cutting and pasting. No reply was necessary. Monetary sanctions are ordered against defendant Pamela Rowe pursuant to CCP section 2023.010 for discovery abuse without substantial justification in the amount of \$950 fees plus filing fee of \$75 for a total of \$1,025 payable by defendant to the Client Trust Account of GRAYSTONE LAW GROUP 26565 West Agoura Road #200 Calabasas, California 91302 no later than 9/18/2026.

RFPs

The same applies for the Motion to Compel Production. This is a boilerplate motion. Plaintiff seeks 8 hours of time at \$475 an hour. There is no explanation how the billing rate was reached. This motion, including hearing, could have been reasonably completed in 2 hours. The separate statement is boilerplate argument, and cutting and pasting. No reply was necessary. The court orders monetary sanctions against defendant Pamela Rowe pursuant to CCP section 2023.010 for discovery abuse without substantial justification in the amount of \$950 fees plus filing fee of \$75 for a total of \$1,025 payable by defendant to the Client Trust Account of GRAYSTONE LAW GROUP 26565 West Agoura Road #200 Calabasas, California 91302 no later than 9/18/2026.